

the remainderman cannot oblige the tenant for life to contribute to the fine (*c*); and so it was determined even where the devise was expressly made, "subject to the payment of all *fin*es, and as they became due yearly and for every year" (*d*). However, as the interest given is in its nature capable of renewal, the Court says, "If the tenant for life do renew, he shall not by converting the new acquisition to his own use derive an unconscientious benefit out of the estate" (*e*); but on the remainderman's *contributing [*364] to the fine, shall be regarded as a trustee, and shall hold the renewed interest upon the trusts of the settlement (*a*).

2. **Whether a direction to renew be implied by the interposition of a trustee.**—Will the *interposition of a trustee* sufficiently indicate an intention of obliging the tenant for life to renew? "In a *devise to trustees*," says Lord Hardwicke, "If *cestui que trust* for life be one of the lives, I should doubt whether such *cestui que trust* could be compellable to contribute; but here all these lives were strangers; *the intent of the testator certainly was, that the lease should continue, and be kept on foot, and something must be done for a renewal, though nothing is mentioned*" (*b*). Lord Alvanley on one occasion alluded to the point, but said he was not called upon to decide it (*c*). In *Hulkes v. Barrow* (*d*), where the devise was to trustees upon trust to permit one to receive the rents for life, with remainders over, "subject to the payments of the rents and performance of the covenants reserved and contained, *or to be reserved and contained*, in the present or *future* leases, whereby such premises were or *should be* held, and also all taxes, *fin*es, and expenses attending the premises," it was held that the obligation of renewing the lease was imposed by the will. And in *Lock v. Lock* (*e*), where a

(*c*) *White v. White*, 4 Ves. 32, *per* Lord Alvanley; S. C. 9 Ves. 561, *per* Lord Eldon; *Stone v. Theed*, 2 B. C. C. 248, *per* Lord Thurlow.

(*d*) *Capel v. Wood*, 4 Russ. 500.

(*e*) *Stone v. Theed*, 2 B. C. C. 248, *per* Lord Thurlow.

(*a*) *Nightingale v. Lawson*, 1 B. C.

C. 440; *Stone v. Theed*, 2 B. C. C. 248, *per* Lord Thurlow; *Coppin v. Fernyhough*, 2 B. C. C. 291; *Fitzroy v. Howard*, 3 Russ. 225.

(*b*) *Verney v. Verney*, 1 Ves. 429.

(*c*) *White v. White*, 4 Ves. 33.

(*d*) *Taml*. 264.

(*e*) 2 Vern. 666.